

1 ENGROSSED SENATE
2 BILL NO. 1246

By: Rader of the Senate

3 and

4 Pfeiffer of the House

5
6 An Act relating to the Oklahoma Environmental Quality
7 Code; amending 27A O.S. 2021, Sections 2-14-103, 2-
8 14-301, 2-14-302, 2-14-303, and 2-14-304, which
9 relate to the Oklahoma Uniform Environmental
10 Permitting Act; modifying definitions; modifying
11 requirements and procedures for certain
12 notifications; requiring certain information be made
13 available online; modifying time frame for which
14 certain meetings are held; modifying time frame for
15 which certain response is prepared; modifying
16 provisions for certain administrative hearing;
17 updating statutory language; updating statutory
18 reference; and providing an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY 27A O.S. 2021, Section 2-14-103,
21 is amended to read as follows:

22 Section 2-14-103. For the purposes of the Oklahoma Uniform
23 Environmental Permitting Act:

24 1. "Application" means a document or set of documents, filed
with the Department of Environmental Quality for the purpose of
receiving a permit or the modification, amendment, or renewal
thereof from the Department. ~~"Application"~~ Application includes any
subsequent additions, revisions, or modifications submitted to the

1 Department which supplement, correct, or amend a pending
2 application;

3 2. "Council" means any advisory council authorized by the
4 Legislature to recommend rules to the Environmental Quality Board;

5 3. "Draft permit" means a draft document prepared by the
6 Department after it has found a Tier II or III application for a
7 permit to be administratively and technically complete, pursuant to
8 the requirements of the Oklahoma Environmental Quality Code and
9 rules promulgated thereunder, and that such application may warrant
10 the issuance, modification, or renewal of the permit;

11 4. "Permit" means a permission required by law and issued by
12 the Department, the application for which has been classified as
13 Tier I, II, or III by the Board. The term "permit" includes but is
14 not limited to:

- 15 a. specific types of permits and other Department
16 authorizations including certifications,
17 registrations, licenses, and plan approvals, and
18 b. an approved variance from a promulgated rule; however,
19 for existing facilities the Department may require
20 additional notice and public participation
21 opportunities for variances posing the potential for
22 increased risk;

23 5. "Process meeting" means a meeting open to the public which
24 is held by the Department to explain the permitting process and the

1 public participation opportunities applicable to a specific Tier III
2 application;

3 6. "Proposed permit" means a document, based on a draft permit
4 and prepared by the Department after consideration of comments
5 received on the draft permit, which indicates the Department's
6 decision to issue a final permit pending the outcome of an
7 administrative permit hearing, if any;

8 7. "Qualified interest group" means any organization with
9 twenty-five or more members who are ~~Oklahoma~~ residents of this
10 state;

11 8. "Response to comments" means a document prepared by the
12 Department after its review of timely comments received on a draft
13 denial or draft permit pursuant to public comment opportunities
14 which:

- 15 a. specifies any provisions of the draft permit that were
16 changed in the proposed or final permit and the
17 reasons for such changes, and
- 18 b. briefly describes and responds to all significant
19 comments raised during the public comment period or
20 formal public meeting about the draft denial or draft
21 permit;

22 9. "Tier I" means a basic process of permitting which includes
23 application, notice to the landowner, and Department review. For
24 the Tier I process a permit shall be issued or denied by a technical

1 supervisor of the reviewing Division, a local representative of the
2 Department, or the chief engineer of the Department provided such
3 authority has been delegated thereto by the Executive Director;

4 10. "Tier II" means a secondary process of permitting which
5 includes:

- 6 a. the Tier I process,
- 7 b. published notice of application filing that contains
8 information on how the public may view documents,
9 subscribe to updates, and receive electronic notice of
10 public participation opportunities related to the
11 pending application and agency decision,
- 12 c. preparation of draft permit or draft denial,
- 13 d. ~~published notice~~ electronic notification and
14 publication of draft permit or draft denial on the
15 Electronic Environmental Permit Application Docket on
16 the Department's website and opportunity for a formal
17 public meeting, ~~and~~
- 18 e. public meeting, if any, and
- 19 f. preparation of the Department's response to comments,
20 if any.

21 For the Tier II process, a permit shall be issued or denied by the
22 Director of the reviewing Division or the chief engineer of the
23 Department provided such authority has been delegated thereto by the
24 Executive Director; and

1 11. "Tier III" means an expanded process of permitting which
2 includes:

- 3 a. the Tier II process except the notice of filing shall
4 also include an opportunity for a process meeting,
5 ~~b. preparation of the Department's response to comments,~~
6 ~~and~~
7 ~~c. denial of application or preparation of a proposed~~
8 ~~permit, or~~
9 ~~d. preparation of a proposed permit, published notice of~~
10 ~~availability of proposed permit and response to~~
11 ~~comments and of opportunity for an administrative~~
12 ~~permit hearing;~~
13 c. electronic notification and publication of denial of
14 application or proposed permit, response to comments,
15 and opportunity for an administrative permit hearing
16 on the Electronic Environmental Permit Application
17 Docket on the Department's website, and
18 d. administrative permit hearing, if any.

19 For the Tier III process a permit shall be issued or denied by the
20 Executive Director.

21 SECTION 2. AMENDATORY 27A O.S. 2021, Section 2-14-301,
22 is amended to read as follows:

23 Section 2-14-301. A. ~~Upon~~ In addition to any other
24 notification requirement imposed by law, upon filing a Tier II or

1 III application with the Department of Environmental Quality, the
2 applicant shall publish notice of the filing as legal notice in one
3 newspaper of general circulation local to the proposed new site or
4 existing facility once a week for two (2) consecutive weeks. The
5 publication shall ~~identify locations where the application may be~~
6 ~~reviewed, including a location in the county where the proposed new~~
7 ~~site or existing facility is located~~ direct the public to the
8 Electronic Environmental Permit Application Docket on the
9 Department's website where the public may view documents related to
10 the pending application and subscribe to receive electronic notice
11 of public participation opportunities and receive updates on other
12 actions related to the pending application. The Department shall
13 maintain documents related to the pending application on the
14 Electronic Environmental Permit Application Docket on the
15 Department's website until the decision on issuance or denial of any
16 pending permit application becomes final.

17 B. For Tier III applications, the publication shall also
18 include notice of a thirty-day opportunity to request, or give the
19 date, time and place for, a process meeting on the permitting
20 process. If the Department receives timely request and determines
21 that a significant degree of public interest in the application
22 exists, it shall schedule and hold such meeting. The applicant
23 shall be entitled to attend the meeting and may make a brief
24 presentation on the permit request. Any local community meeting to

1 be held by the applicant on the proposed facility or activity for
2 which a permit is sought may, with the agreement of the Department
3 and the applicant, be combined with the process meeting authorized
4 by this ~~paragraph~~ subsection.

5 C. The provisions of this section shall not stay the
6 Department's review of the application.

7 SECTION 3. AMENDATORY 27A O.S. 2021, Section 2-14-302,
8 is amended to read as follows:

9 Section 2-14-302. A. Upon conclusion of its technical review
10 of a Tier II or III application within the permitting ~~timeframes~~
11 time frames established by rules promulgated by the Environmental
12 Quality Board, the Department of Environmental Quality shall prepare
13 a draft denial or draft permit.

14 1. Notice of a draft denial or draft permit shall be given by
15 the Department ~~and notice of a draft permit shall be given by the~~
16 ~~applicant~~ on the Department's website.

17 2. Notice of the draft denial or draft permit shall be
18 ~~published as legal notice in one newspaper local to the proposed new~~
19 ~~site or existing facility. The notice shall identify places where~~
20 ~~the draft denial or draft permit may be reviewed, including a~~
21 ~~location in the county where the proposed new site or existing~~
22 ~~facility is located, and shall provide for a set time period for~~
23 ~~public comment and for the opportunity to request a formal public~~
24 ~~meeting on the respective draft denial or draft permit~~ posted on the

1 Electronic Environmental Permit Application Docket on the
2 Department's website and provided to the applicant and those who
3 subscribed to receive notifications. The notice shall provide for a
4 set time period for public comment and for the opportunity to
5 request a formal public meeting on the respective draft denial or
6 draft permit. Such time period shall be set at thirty (30) days
7 after the date the notice is ~~published~~ posted unless a longer time
8 is required by federal regulations promulgated as rules by the
9 Board. In lieu of the notice of opportunity to request a public
10 meeting, notice of the date, time, and place of a public meeting may
11 be given, if previously scheduled.

12 B. Upon the ~~publication of notice~~ notification of a draft
13 permit, the ~~applicant~~ Department shall make the draft permit and the
14 application, except for proprietary provisions otherwise protected
15 by law, available for public review ~~at a location in the county~~
16 ~~where the proposed new site or existing facility is located~~ on the
17 Electronic Environmental Permit Application Docket on the
18 Department's website.

19 SECTION 4. AMENDATORY 27A O.S. 2021, Section 2-14-303,
20 is amended to read as follows:

21 Section 2-14-303. The Department of Environmental Quality shall
22 expeditiously schedule and hold a formal public meeting if the
23 Department receives written timely request for such meeting,
24 pursuant to the provisions of Section 2-14-302 of this title, and

1 determines there is a significant degree of public interest in the
2 draft denial or draft permit.

3 1. Notice of the meeting shall be ~~given to the public~~ posted on
4 the Electronic Environmental Permit Application Docket on the
5 Department's website and provided to the applicant and those who
6 subscribed to receive notifications at least thirty (30) days prior
7 to the meeting date.

8 2. The public meeting shall be held at a location convenient to
9 and near the proposed new site or existing facility not more than
10 ~~one hundred twenty (120)~~ seventy-five (75) days after the date
11 notice of the draft denial or draft permit was ~~published~~ issued
12 unless the applicant requests a longer period to prepare for the
13 public meeting.

14 3. At the meeting, any person may submit oral or written
15 statements and data concerning the draft denial or draft permit.
16 Reasonable limits may be set upon the time allowed for oral
17 statements.

18 4. The public comment period shall automatically be extended to
19 the close of the public meeting. Upon good cause shown, the
20 presiding officer may extend the comment period further to a date
21 certain by so stating at the meeting.

22 5. Such meeting shall not be a quasi-judicial proceeding.

23 6. The applicant or a representative of the applicant shall be
24 present at the meeting to respond to questions.

SECTION 5. AMENDATORY 27A O.S. 2021, Section 2-14-304,

is amended to read as follows:

Section 2-14-304. A. For draft permits or draft denials for Tier II applications on which no comment or public meeting request was timely received and on which no public meeting was held, the final permit shall be issued or denied.

B. For draft permits or draft denials for Tier II applications on which comment or a public meeting request was timely received or on which a public meeting was held, the Department of Environmental Quality, after considering the comments, shall prepare a response to comments and issue the draft permit as is or as amended or make final denial.

The response to comments shall be prepared within ~~ninety (90)~~ forty-five (45) days after the close of the public comment period unless extended by the Executive Director upon a determination that additional time is required due to circumstances outside the control of the Department. Such circumstances may include, but shall not be limited to, an act of God, a substantial and unexpected increase in the number of applications filed, an unusually large number of public comments, unusually lengthy public comments that require extensive technical responses, additional review duties imposed on the Department from an outside source, or outside review by a federal agency.

1 C. For a draft permit or draft denial for a Tier III
2 application, after the public comment period and the public meeting,
3 if any, the Department shall ~~prepare a response to comments and~~
4 either issue a final denial in accordance with paragraph 2 of this
5 subsection or prepare a proposed permit.

6 1. When a proposed permit is prepared, the ~~applicant~~ Department
7 shall ~~publish post~~ notice, ~~as legal notice in one newspaper local to~~
8 ~~the proposed new site or existing facility, of the Department's~~
9 ~~tentative decision to issue the permit~~ on the Electronic
10 Environmental Permit Application Docket on the Department's website
11 and provide notice to the applicant and those who subscribed to
12 receive notifications on the permit application. Such notice shall
13 identify the places where the proposed permit and the Department's
14 response to comments may be reviewed, ~~including a location in the~~
15 ~~county where the proposed new site or existing facility is located~~
16 and shall offer a twenty-day opportunity to request an
17 administrative hearing to participate in as a party. The
18 opportunity to request a hearing shall be available to the applicant
19 and any person or qualified interest group who claims to hold a
20 demonstrable environmental interest and who alleges that the
21 construction or operation of the proposed facility or activity would
22 directly and adversely affect such interest.

1 If no written administrative hearing request is received by the
2 Department by the end of twenty (20) days after the ~~publication~~ date
3 of the notice, the final permit shall be issued.

4 2. If the Department's final decision is to deny the permit, it
5 shall give notice to the applicant and issue a final denial in
6 accordance with subsection F of this section.

7 D. When an administrative hearing is timely requested on a
8 proposed permit in accordance with subsection C of this section, all
9 timely requests shall be combined in a single hearing. The hearing
10 shall be a quasi-judicial proceeding and shall be conducted by an
11 ~~Administrative Law Judge~~ administrative law judge in accordance with
12 Article 2 of the Administrative Procedures Act, the Oklahoma
13 Environmental Quality Code and rules promulgated by the
14 Environmental Quality Board.

15 1. The applicant shall be a party to the hearing.

16 2. The Department shall ~~schedule~~ hold a prehearing conference
17 within ~~sixty (60)~~ forty-five (45) days after the end of the hearing
18 request period.

19 3. The Department shall move expeditiously to an evidentiary
20 proceeding in which parties shall have the right to present evidence
21 before the Department on whether the proposed permit and the
22 technical data, models and analyses, and information in the
23 application upon which the proposed permit is based are in
24 substantial compliance with applicable provisions of the Code and

1 rules promulgated thereunder and whether the proposed permit should
2 be issued as is, amended and issued, or denied.

3 4. Failure of any party to participate in the administrative
4 proceeding with good faith and diligence may result in a default
5 judgment with regard to that party; provided, however, that no final
6 permit shall be issued solely on the basis of any such judgment.

7 E. If the Department decides to reverse its initial draft
8 decision, it shall withdraw the draft denial or draft permit and
9 prepare a draft permit or draft denial, as appropriate. Notice of
10 the withdrawal of the original draft and preparation of the revised
11 draft shall be given as provided in Section 2-14-302 of this title.
12 The Department shall then ~~re-open~~ reopen the comment period and
13 provide additional opportunity for a formal public meeting on the
14 revised draft as described in Section 2-14-303 of this title.

15 F. Upon final issuance or denial of a permit for a Tier III
16 application, the Department shall provide ~~public notice~~ notification
17 of the final permit decision and the availability of the response to
18 comments, if any.

19 G. Any appeal of a Tier III final permit decision or any final
20 order connected therewith shall be made in accordance with the
21 provisions of the Code and the Administrative Procedures Act.

22 H. Any applicant, within ten (10) days after final denial of
23 the application for a new original permit on which no final order
24 was issued, may petition the Department for reconsideration on the

1 grounds stated in subsection A of Section 317 of Title 75 of the
2 Oklahoma Statutes as if the denial was an order. Disposition of the
3 petition shall be by order of the Executive Director according to
4 subsections B and D of Section 317 of Title 75 of the Oklahoma
5 Statutes.

6 SECTION 6. This act shall become effective November 1, 2026.

7 Passed the Senate the 10th day of March, 2026.

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Presiding Officer of the Senate

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11 Passed the House of Representatives the ____ day of _____,
12 2026.

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Presiding Officer of the House
of Representatives

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